

24STCV08128 24STCV08128

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-06-25

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Case Number: 24STCV08128 Hearing Date: June 25, 2026 Dept: 534

Background

On April 2, 2024, Plaintiff Maria Nolasco

Villavicencio filed this action against the Los Angeles County

Metropolitan Transportation Authority for negligence arising out allegations

that Plaintiff suffered injuries while a passenger on a METRO bus on February

8, 2023. The Claim for Damages attached to the First Amended Complaint alleges

Plaintiff stood up while the bus was in motion, “the bus jolted,” and Plaintiff

fell causing injuries.

On

October 9, 2024, Plaintiff filed Superior Court of Los Angeles County case

24STCV26233 against the Los

Angeles County Metropolitan Transportation Authority asserting a claim for

negligence arising out of allegations that Plaintiff suffered injuries on

October 20, 2022 when the driver of a MTA bus closed the doors on Plaintiff. This

case is assigned to Department 400 of the Stanley Mosk Courthouse with trial

set for July 20, 2026.

On February 24, 2025, Defendant filed a

Notice of Related Case involving 24STCV08128 and 24STCV26233.

On March 19, 2025, Judge Robert B. Broadbelt

issued an order finding the cases were not related within the meaning of

California Rules of Court, rule 3.300(a).

On May 7, 2026, the parties submitted a

stipulation to relate and consolidate the cases.

Motion

On June 2, 2026, Defendant filed the instant motion seeking to relate 24STCV08128 with 24STCV26233.

The motion is unopposed. (Code Civ. Proc. § 1005.)

Motion
to Relate Cases

Standard

Pursuant to Superior Court of Los Angeles County Local Rules, rule 3.3(f)(3), “[i]n the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases, any party may file a motion to have the cases related. Department 1 [renumbered as of May 4, 2026, Department 534] shall hear the motion, if the cases are all pending in the Central District or are pending in two or more different districts.”

The
Court Shall Relate the Cases at Issue

On March 19, 2025, Judge Robert B. Broadbelt issued an order declining to relate 24STCV08128 with 24STCV26233. The motion is therefore properly before this Court. (SCLAC Local Rules, rule 3.3(f)(3); Cal. R. Ct., rule 3.300(h)(1)(D).)

Cases are related when they (1) involve the same parties and are based on the same or similar claims, (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact, (3) involve claims against, title to, possession of, or damages to the same property, or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a).)

Defendant

indicates the parties have stipulated to consolidate the two cases and first require an order deeming the cases related. (See SCLAC Local Rules, rule 3.3(g).)

The

cases involve the same parties, but are not based upon the same or similar claims. (Code Civ. Proc. § 3.300(a)(1).) The cases also do not arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact. (Cal. R. Ct., rule 3.300(a)(2).) While the cases assert the same cause of action, the cases are based upon separate occurrences, at different times, under different circumstances. The cases do not include property claims. (Cal. R. Ct., rule 3.300(a)(3).)

However,

the cases are likely to require a substantial duplication of judicial resources if they continue to be heard by different judges. (Cal. R. Ct., rule 3.300(a)(4).) While the complaints indicate Plaintiff suffered largely different injuries, Defendant's counsel states the two incidents resulted in "identical orthopedic complaints for which she sought similar treatment from overlapping providers." (Lewis Decl. ¶ 4.) The cases have been pending since 2024, but the parties have not filed any substantive motions in either case. Defendant also indicates the "[t]he Parties plan to use the same liability and medical experts in each of the cases." (Mot. at 8:13-14.) Thus, the cases are likely to involve similar issues related to expert discovery and causation. Having a single judicial officer preside over the Plaintiff's personal injury claims against Defendant will promote judicial efficiency and reduce the possibility of inconsistent rulings. (Harris v. Rojas (2021) 66 Cal.App.5th 817, 820 ("The notice allows the trial court to promote efficiency, to avoid duplicative effort, . . . , and to minimize the prospect of conflicting results.").)

The

Court finds the cases are related within the meaning of California Rules of Court, rule 3.300 and the motion is GRANTED.

Conclusion

Motion

of Defendant Los Angeles County Metropolitan Transportation Authority to Relate

Cases is GRANTED.

The

Court relates 24STCV08128 and 24STCV26233

and orders 24STCV26233 reassigned

to Department 513 of the Stanley Mosk Courthouse for all purposes.

All hearings

currently set in 24STCV26233 are

hereby advanced and vacated.

Counsel

for Moving Party is ordered to give notice.